

Sri Ram Singh v. Gangadhar, Executive Engineer (Vidyut Vitaran Khand-I)

High Court of Judicature at Allahabad · Single Judge · 2 December 2016 · CONTEMPT APPLICATION (CIVIL) No. 4940 of 2011 · **Contempt dismissed as infructuous; notice discharged.**

HEADNOTE

Civil contempt alleging that the Executive Engineer had not decided a Clause 6.5 Supply Code application, as a 2010 writ order required, was dismissed as infructuous in 2016 on a presumption of compliance after long pendency; notice was discharged without deciding the billing objection.

FACTUAL SUMMARY

In Writ Petition No. 64253 of 2010, a Division Bench on 27 October 2010 gave Sri Ram Singh liberty to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005, directing the competent authority to proceed in accordance with law. He filed that order with a Clause 6.5 application before the Executive Engineer, Electricity Distribution, Ballia on 30 October 2010. Alleging no decision after nearly eleven months, he brought civil contempt against Gangadhar, Executive Engineer (Vidyut Vitaran Khand-I), Ballia. Notice issued; a compliance affidavit and later impleadment followed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt for non-decision of clause 6.5 application

HOLDING

Where a writ court had only given liberty to apply under Clause 6.5 and directed the competent authority to proceed in accordance with law, later civil contempt alleging that the Executive Engineer had not decided that application was dismissed as infructuous and notice discharged after years of pendency, the court presuming compliance; the billing objection itself was not adjudicated. ¶ 6

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill

Civil contempt alleging that the Executive Engineer had not decided a Clause 6.5 Supply Code application, as a 2010 writ order required, was dismissed as infructuous in 2016 on a presumption of compliance after long pendency; notice was discharged without deciding the billing objection. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 BILLING OBJECTION AND WHETHER THE 2010 WRIT DIRECTION HAD IN FACT BEEN COMPLIED WITH

The court inferred probable compliance from the age of the 2011 contempt and did not decide delay, disobedience, or the underlying bill. ¶ 6